

25STCV13266 25STCV13266

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Pending before the Court is Plaintiff's motion for an order requiring Defendant Los Angeles Unified School District ("LAUSD") to disclose for in camera review by the Court certain LAUSD peace officer personnel records under Pitchess v. Superior Court (1974) 11 Cal.3d 531 ["Pitchess"]. The Court is granting the motion.

Under Pitchess, "a criminal defendant, upon a showing of good cause, [can] compel discovery of information in a police officer's personnel file that [is] relevant to the defendant's ability to defend against a criminal charge." (Riske v. Superior Court (City of Los Angeles) (2016) 6 Cal.App.5th 647, 654.) The principles and standards of Pitchess have been codified in statutes applicable in both criminal and civil cases. (Long Beach Police Officers Assn. v. City of Long Beach (2014) 59 Cal.4th 59, 68.)

A motion under Pitchess must describe the type of records or information sought and include an affidavit showing good cause for the discovery, which explains the materiality of the information to the subject of the pending litigation and states on reasonable belief that the governmental agency has the records or information. (People v. Superior Court (Johnson) (2016) 61 Cal. App.4th 696, 710.) The required "good cause" showing reflects a "relatively low threshold for discovery." (Garcia v. Superior Court (City of Santa Ana) (2007) 42 Cal.4th 63, 71.) Specifically, the affidavit need only present 'a plausible factual foundation' for the asserted materiality of the records sought to the subject matter of the litigation. (Warrick v. Superior Court (City of Los Angeles Police Department) (2005) 35 Cal. 4th 1011, 1025.) In deciding whether the moving party has shown good cause for the disclosure of the records sought based on a plausible factual scenario, the trial court does not assess credibility of either the affiant or the version of the events set forth in the affidavit. (Id. at p. 1026.) "When a trial court concludes [that the] Pitchess motion shows good cause for discovery a law enforcement officer's personnel files, the custodian of the records of the agency is obligated to bring to the trial court all 'potentially relevant' documents to permit the trial court to examine them for itself." (People v. Mooc (2001) 26 Cal.4th 1216, 1228–1229.) That review is conducted in camera. (City of Santa Cruz v. Municipal Court (Kennedy) (1989) 49 Cal.3d 74, 83.)

In the Court's view, Plaintiff has established good cause for the discovery of the peace officer records that are the subject of the motion within the meaning of Pitchess precedent. The arguments to the contrary that LASUD made in its opposition to the motion were unpersuasive.